

REVIEW ESSAY

The Stories We Tell Ourselves about Peace and Genocide

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A. Dirk Moses, *The Problems of Genocide: Permanent Security and the Language of Transgression* (Cambridge: Cambridge University Press, 2021)

Lauren Benton, *They Called It Peace: Worlds of Imperial Violence* (Princeton: Princeton University Press, 2024)

When the doyen of international relations Hans J. Morgenthau lamented the tension between moral imperatives and the requirements of effective political action (usually related to state security), the tragedy for Morgenthau was the awareness that the only viable ethical choice for political leaders is the lesser evil.¹ Does this contention of the limits of ethics in international relations leave the current destruction of Gaza the lesser of two evils? Hannah Arendt famously reminds us that “those who choose the lesser evil forget quickly that they chose evil.”² The troubling reality is that Netanyahu’s government is not tragically choosing a lesser evil. Rather, it is fighting a struggle “against the forces of evil.”³ The lesser-evil justification is a minimalist moral consideration of sorts that is generally not afforded to the Palestinians, making the Israeli moral landscape far grimmer.⁴ Anthropologist Didier Fassin asserts that the moral failure over Gaza (however it is conceived) will leave an “indelible trace in the memory of the societies that will be accountable for it.”⁵ He is right. Not only has this kind of “[c]onsent to the obliteration of Gaza created an enormous gulf in the global moral order” (imperfect

¹ Hans J. Morgenthau, “The Evil of Politics and the Ethics of Evil,” *Ethics* 56/1 (1945), 1–18.

² Hannah Arendt, “Personal Responsibility under Dictatorship,” in Arendt, *Responsibility and Judgment*, ed. Jerome Kohn (New York, 2003), 17–48, at 36.

³ Quoted in Nava Freiberg, in the *Israeli Times*, 21 Sept. 2025.

⁴ The just-war theorist Jeff McMahan further argues that the lesser-evil justification falls short when applied to Israel’s war in Gaza. Any defense of the Israeli logic of the “standards of proportionality in the killing of innocent people must appeal to a form of justification that is more permissive than a lesser-evil justification.” See Jeff McMahan, “Proportionality and Necessity in Israel’s Invasion of Gaza,” *Analyse & Kritik* 46/2 (2024), 387–407, at 397.

⁵ Didier Fassin, *Moral Abdication: How the World Failed to Stop the Destruction of Gaza* (London, 2024), 1–2.

as it may have been), we should not, however, view it as an exceptional abandonment of humanity either, for there are plenty of examples of *realpolitik* seen in practice. What does seem exceptional about Gaza is the political, intellectual, and emotional convergence of the consensus, for many in the West anyway, that Palestinian lives are just significantly worth less than Israeli lives.⁶ Many apologists for Israel have been shown to have a “healthy” moral appetite for the war against Hamas, asserting its legality, and characterizing civilian losses as regrettable yet permissible collateral damage.⁷ Meaning that 70,000 dead Palestinians (a significant number of those children), the complete decimation of health care and educational infrastructure, and 1.5 million people on the brink of starvation are perceived as legitimate and argued to be legal targets.

In both historical and contemporary discourse, violence is often perceived as the antithesis of law—an eruption of chaos in the absence of order.⁸ The progression of law, so the story goes, both domestically and internationally, signifies a victory of rationality over violence, with coercion in political affairs being severely proscribed and tempered. Particularly, the post-World War II liberal normative world order has been heralded as an era for humanity and peace. Scholars like Lauren Benton and Dirk Moses challenge this conventional narrative by urging us to reconsider the intertwined nature of violence and law in the formation of global order. In *They Called It Peace: Worlds of Imperial Violence*, Benton highlights the persistent legal ambiguities and imperial violence that have long characterized global politics, unsettling the notion that the regulation of warfare has improved over time. She does this by situating “small wars” at the core of a new historical understanding of inter-polity relations. There is a long-standing endeavor to place moral constraints on the way war is fought. Nevertheless, these constraints possess their own mechanisms for orchestrating further violence, Benton claims. In *The Problems of Genocide: Permanent Security and the Language of Transgression*, Moses wants to restrict (if not eliminate) genocide from our moral lexicon by critiquing how the concept of genocide, rather than solely representing a moral failure, functions ideologically to obscure systematic violence against civilians by governments, including Western powers. Moses shows how war and genocide are conceptually differentiated (and problematically so), and while the latter is perceived to be “the crime of crimes,” civilian losses in warfare are legally understood as unavoidable. Moses extends this critique to the institutionalization of genocide, including its memory regimes (in particular the Holocaust) and its prevention policies, which

⁶Ibid., 1.

⁷See Jessica Whyte, “A ‘Tragic Humanitarian Crisis’: Israel’s Weaponization of Starvation and the Question of Intent,” *Journal of Genocide Research*, 17 April 2024, at <https://doi.org/10.1080/14623528.2024.2339637>; Camilla Boisen, “Israel’s Punitive War on Palestinians in Gaza,” *Journal of Genocide Research*, 26 Sept. 2024, at <https://doi.org/10.1080/14623528.2024.2406098>; Alonso Gurmendi Dunkelberg, “How to Hide a Genocide: Modern/Colonial International Law and the Construction of Impunity,” *Journal of Genocide Research*, 22 Jan. 2025, at <https://doi.org/10.1080/14623528.2025.2454739>; Mark LeVine and Eric Cheyfitz, “Israel, Palestine, and the Poetics of Genocide Revisited,” *Journal of Genocide Research*, 22 April 2025, at <https://doi.org/10.1080/14623528.2025.2482297>; Zoé Samudzi, “‘We Are Fighting Nazis’: Genocidal Fashionings of Gaza(ns) after 7 October,” *Journal of Genocide Research*, 18 Jan. 2024, at <https://doi.org/10.1080/14623528.2024.2305524>.

⁸Daniel R. Quiroga-Villamarín, interview with Lauren Benton, 19 July 2024, Toynbee Prize Foundation, at <https://toynbeeprize.org/posts/finding-law-in-the-history-of-global-violence-an-interview-with-lauren-benton> (accessed 3 Aug. 2025).

perpetuate violence under the guise of security imperatives. The logic of “permanent security” explains and motivates excessive violence in wars, while the “language of transgression” is crucial for interpreting mass violence, highlighting a conceptual dichotomy between civilization and barbarism with significant historical ties to colonialism and imperialism.

This review essay aims to establish an agenda that highlights the significance of historicizing violence with the purpose of enriching our understanding of such historical patterns, the architecture of mass atrocities, and their modern-day implications.⁹ *The Problems of Genocide*’s original analytical and conceptual toolkit is my starting point for reading peace and security convergently. After explaining Moses’s overarching term of “permanent security” and its centrality for thinking about the relationship between war and genocide, as well as the impact it has had on genocide studies, I extend it mainly in two interrelated ways: first, I show how permanent-security imperatives permeate and instantiate cultures of atrocity memorialization, especially within the global memory regime of the Holocaust, and how these memory regimes are loci for a language of transgression. The challenge with genocide memorialization lies in its tendency to solidify definitions from the past, along with the reasonings and arguments that initially rendered these acts morally reprehensible. Ultimately, it constitutes a type of securitization of historical moral indignation. The phrase “never again” signifies a permanent security against a particular kind of moral outrage that serves various interventionist political agendas, yet this delineation of a finite moral boundary is, from a normative standpoint, concerning.

Second, the kind of legal history of “peace” that Benton investigates captures permanent-security logic exactly by producing a certain rationale for war. Peace is integral to war’s humanitarian pretensions, and, like genocide, has established its own moral hierarchy with a high tolerance for civilian casualties in warfare. The agenda to be set out here, then, is also one of exploring how concepts such as peace and genocide share a typology that has brought them to the fore as examples of philosophical mistakes of permanence and value that become new languages of justification, rooted in an often interrelated or tangentially related past. They are justifications from *praeteritum* and shield a potential moral transgressor in the present through the dominance or even validity of a previous event.

The Problems of Genocide

Whenever I teach *The Problems of Genocide*, I can’t help but notice the transformative effect it has on undergraduate academics. It immerses them in the wilderness of intellectual disquiet and academic uncertainty—precisely where they ought to be—particularly given that many begin their exploration of genocide with a sense of unwavering conviction, if not righteous certainty. There is probably also an element of emotional bewilderment; we are, after all, dealing with genocide. I find that for

⁹In some way, then, this review essay diverges from more conventional reviews by abstaining from evaluating the persuasiveness of historical methodologies adopted by the authors. That said, both Moses and Benton excel in crafting compelling and impactful historical narratives with impressive archival research, secondary source materials, and a theoretical apparatus in support.

the Western students in my class,¹⁰ the book asks them to give up a cherished moral vocabulary that has given them clear boundaries for political evil: that there was no other greater moral offense than that of Nazism and the Holocaust (as the archetype of genocide). Genocide was never a vanishing point on the horizon. It was the advent of moral truth about real evil in our time (so the story goes), and an evil that the West was morally obligated (the “never again” regiment) to confront, punish, and atone for through redemptive anti-anti-Semitism¹¹ efforts that promote a global holocaust regime.¹²

For the non-Western students, the task is to question, if not give up, *the* moral authority of victimhood that genocide affords (which, as Moses so brilliantly shows, was never for them in the first place. Here I am reminded of Audre Lorde’s mantra “The Master’s Tools Will Never Dismantle the Master’s House”) as a possible pathway for justice.¹³ Responding to one reviewer, Moses asserts that in writing this mammoth monograph, he was “interested less in the origins of genocide than in the production of its ‘truth,’ its apparent naturalness, and in the conditions of possibility of its conceptualization.”¹⁴ This production of truth regarding genocide is precisely what surprises (if not disturbs) many of my students, since Moses, with his usual erudition and persuasive, analytical precision, reveals the political deception inherent in the genocide concept, its history, and its practice.¹⁵ “Truth” is grounded in a particular moral imaginary indexed by what Moses calls “language of transgression” in which the crime of genocide becomes intelligible (28). Its inventor, the Polish Jewish lawyer Raphael Lemkin (1900–59), in 1944 developed genocide as a critique of Nazi colonialism, and aligned himself with the tradition of liberal anti-imperial thought, wherein the framework of universal human rights, and therefore also genocide, emerged in response to issues concerning the status of the colonized population.¹⁶

Lemkin thought genocide was a profound affliction of humanity. It was not synonymous with physical extermination (as it is now) but with the crippling of a human group, including through nonlethal means such as language suppression, destruction of institutions, or forced assimilation.¹⁷ Besides the more universalist and extensive

¹⁰I realize that the “Western” distinction might be somewhat discursively crude.

¹¹Adam Sutcliffe, “Whose Feelings Matter? Holocaust Memory, Empathy, and Redemptive Anti-antisemitism,” *Journal of Genocide Research* 26/2 (2022), 222–42.

¹²A memory regime that, if it does not condone, then excuses Israeli state territorial ambitions (and now onslaught) against Palestine.

¹³On the issue with genocide advocacy see Kate Cronin-Furman’s excellent piece “The Problems of Genocide Advocacy,” *Global Intellectual History* 10/4 (2023), 345–51.

¹⁴A. Dirk Moses, “Replacing ‘Genocide’ with ‘Permanent Security’ via Genealogy,” *Global Intellectual History* 10/4 (2023), 358–65, at 358.

¹⁵Teaching *The Problems of Genocide* also yields another “teaching bonus” as students come to recognize the significance of historicizing contemporary events as a means of critically examining political concepts (such as genocide), their historical development, and their current implications. Intellectual historians, of course, have always been confident in the significance of their field of study and its distinct ability to highlight how past ideas continue to influence current values, beliefs, and social arrangements.

¹⁶See Andrew Fitzmaurice, “Anticolonialism in Western Political Thought: The Colonial Origins of the Concept of Genocide,” in A. Dirk Moses, ed., *Empire, Colony, Genocide: Conquest, Occupation and Subaltern Resistance in World History* (New York and Oxford, 2008), 55–80.

¹⁷See Raphael Lemkin, *Axis Rule in Occupied Europe* (Washington, DC, 1944), Ch. 9.

undertone that Lemkin's conception of genocide takes, Lemkin accepted "civilizational progress" through what he terms "cultural diffusion" (as opposed to cultural genocide). Lemkin valorized liberal empire when it brought law and order and catalyzed gradual assimilation (like other critics of empire, he thought law was "the gentle civilizer of nations").¹⁸ He did not contest colonization or empire per se, and he regarded "benign imperialism" as a means to propagate international humanitarian law.¹⁹ This ambivalence tempered his own critique and reflects a broader tension in Lemkin's ideation of genocide. For instance, he wanted to preserve cultural diversity, yet he held a hierarchical view of civilizational development that subtly privileged European forms. Genocide, then, instantiates dehumanizing ideas, which follow a rich tapestry of colonial tropes, of "invoking a world of ideas"²⁰ of transgressional language that maps onto structured moral arguments for war. So, in discussions of mass criminality, it is genocide that "shocks the conscience of humankind" and is condemned by the "civilized world" (49). For Moses, the legacy of Lemkin is not only the continuation of humanitarian sentiment, but the drastic simplification of a lexical tradition that draws distinctions between legitimate and illegitimate violence (going back to the sixteenth century) and invokes state power to challenge the latter. The "language of transgression" characterized the lexicon, notions, and frameworks that societies utilize to delineate, regulate, and respond to actions deemed profoundly unlawful or morally reprehensible, particularly mass violence and atrocity crimes such as genocide. This terminology, Moses shows, establishes the "upper threshold of mass criminality," effectively delineating the parameters for what is deemed outrageous or necessitating worldwide condemnation. The transgressional buzzwords of "conscience, shock, humanity, barbarism, civilization" were employed by diplomats or politicians under the guise of humanitarian sentiment to address political evil (50–51). After all, the word "genocide" did not exist until 1944, but emerged as one such "buzzword." The real political evil, for Moses, however, is not genocide, but permanent security. In fact, one of the main problems of genocide is that it "conceals permanent security" (1) and must be understood as a security rather than solely a crime of race hatred. It is permanent security, Moses claims, that should replace genocide as an international crime (1).

Permanent security

Utopian paranoia constitutes Moses's original concept of "permanent security."²¹ Moses distinguishes between two modalities of permanent security: "illiberal" and "liberal." This distinction is not normative but rather to illustrate how they index the language of the transgression playbook. The illiberal permanent-security paradigm entails the preventive killing of presumed future threats to a particular ethnos, nation, or religion,

¹⁸To use Martti Koskenniemi's term (proving not so "gentle," of course).

¹⁹A. Dirk Moses, "Raphael Lemkin, Culture, and the Concept of Genocide," in Donald Bloxham and A. Dirk Moses, eds., *The Oxford Handbook of Genocide Studies*, online edn (Oxford, 2010), 19–41, at 29.

²⁰See David Boucher, "Invoking a World of Ideas: Theory and Interpretation in the Justification of Colonialism," *Theoria* 63/147 (2016), 6–24.

²¹Although, as Moses (34) says, the term is not his invention. It was utilized by the Nazi commander Einsatzgruppe D SS-Führer Otto Ohlendorf (1907–51) as a rationale for the wholesale extermination of Jews in Ukraine, Moldova, and the Caucasus. The term was common in Germany in the first half of the twentieth century to refer to a range of phenomena, including insurance.

often disregarding international law and universal morality. It does not distinguish between civilians and combatants, and killing children as future threats is a characteristic of this paradigm. So, effectively, “genocide.” On the other hand, the liberal permanent-security paradigm envisions the world as the territory to be secured in the name of “humanity.” It is associated with the colonial civilizing missions of European and North American powers and is based on the pretense of universal values and human progress. This paradigm often involves military campaigns with civilian casualties intended or accepted as incidental to the military objective. Thus there are direct links between human consciousness and permanent-security reasonings.

Moses shows the dialectic relationship between genocide and military violence as a historical reality with a political presence. The legal provisions for genocide were deliberately kept narrow by its framers, allowing the victors of World War II to delegitimize and criminalize one kind of mass violence against civilians, which was supposedly motivated by racial hatred and looked like the Holocaust, while legitimizing another; that is, civilian destruction done for military and security reasons that they themselves perpetrated. This nonpolitical reasoning—enshrined in the United Nations Convention on the Prevention and Punishment of Genocide (UNGC)—fails because state mass violence is always driven by security paranoia and security logics, as Moses emphasizes. This is most clearly evident in the opaque difference between genocidal intent and military intent—that is, between intent to destroy and intent to defeat. As Moses says elsewhere, “the tension between the rules of atrocity recognition that compel claimants to invoke genocide while its legal meaning places strict limits on the applicability of the ... UNGC.”²² We see these constrictions at work, in particular with regard to Israel/Palestine, and in the case the Republic of South Africa brought against Israel. Because the legal question of genocide admits only a yes/no answer, other aspects of the conflict are missed: maybe we are witnessing attacks on civilians that amount to “more than genocide”?²³ Moses’s point is exactly that mass state violence against civilians is not an anomaly or exception in the international system as genocide implies: it is intrinsic to the very idea of statehood and its security requirements.

The notion of permanent security has had a profound impact on genocide studies—a field that currently faces something of a crisis, not least because the recent war in Palestine has laid bare these challenges to genocide and how and why it is studied.²⁴ Genocide studies are, after all, fundamentally based on the imperative to prevent genocide. An assortment of scholarly commentary and treatment on the war in Gaza collected in the special forum on the Israel–Palestine war in the *Journal of Genocide Research* (Moses serves as its senior editor) suggests the ways many genocide scholars

²²A. Dirk Moses, “An Earlier Genocide Debate: Vietnam, International Law, and the Question of Gaza,” *Law and Critique* 36 (2025), 295–315.

²³A. Dirk Moses, “More than Genocide,” *Boston Review*, 14 Nov. 2023, at www.bostonreview.net/articles/more-than-genocide.

²⁴See the many excellent articles published in the *Journal of Genocide Research* forum “Israel–Palestine: Atrocity Crimes and the Crisis of Holocaust and Genocide Studies.” Also Mari Cohen, “Can Genocide Studies Survive a Genocide in Gaza?”, *Jewish Currents*, Fall–Winter 2024, at <https://jewishcurrents.org/can-genocide-studies-survive-a-genocide-in-gaza>. See also Shira Klein, “The Growing Rift between Holocaust Scholars over Israel/Palestine,” *Journal of Genocide Research*, 8 Jan. 2025, at www.tandfonline.com/doi/full/10.1080/14623528.2024.2448061#d1e116.

consider “permanent security” more generally in their study of mass violence and its history, particularly in relation to Gaza. As a contribution to this forum, my own scholarly intervention in this debate examined the alignment of Israel’s justifications for its military actions in Gaza since 7 October 2023 with notions of punitive war. I drew on the intellectual history of punitive war in the early modern period as a way to uncover the extent to which violence against civilians, Palestinians included, is a fundamental aspect of a state’s security concerns, representing a paradigm of exceptionalism and moral repudiation. Thus, in my scholarly optics, punitive war is a species of permanent security.²⁵

Another is Atalia Omer’s “Turning Palestine into a *Terra Nullius*: On Amalek and ‘Miracles,’”²⁶ which argues that, far from being on the fringe, the Amalek, as racialized eschatology, has been mainstreamed into Israeli political and legal discourse. From soldiers dancing to Deuteronomy verses in Gaza to High Court justices invoking it to justify starvation policies, it reveals the convergence between Kahanist zeal and the state’s permanent-security logic. Thus threats are not contextual or political but *existential* and *totalizing*, demanding complete elimination. Akin to Moses’s critique of the “security states” (although Omer does not engage explicitly with Moses), Omer reveals how Israeli state actors deploy the Amalek metaphor to pre-authorize genocidal action in the name of survival, turning every Palestinian into a potential “Haman” (enemy). Another contribution to the forum is Nadim Rouhana’s “Mowing the Lawn: Lethal Metaphors in Israeli National Security,”²⁷ which analytically traces the evolution and political function of the Israeli military doctrine known as “mowing the grass,” highlighting how its underlying logic has shifted from containment to eradication following the events of 7 October 2023. The metaphor, first associated with periodic strikes aimed at weakening Palestinian resistance, particularly in Gaza, is grounded in the colonial logic of elimination, where the native population is perceived as inherently unruly, overgrown, and threatening to the imagined order of the settler state.

Rouhana’s description of how Israeli military strategy repeated assaults on Gaza, targeting its infrastructure, leadership, and population, as a form of routine maintenance, a hygienic act akin to lawnmowers, resonates with logic of “permanent security” but also with Arendt’s concept of the “banality of evil,”²⁸ the idea that mass violence and atrocities are often perpetrated not by monstrous individuals but through routinized, bureaucratized, and depersonalized systems of thought and action. The metaphor of “mowing the lawn” ultimately naturalizes structural violence, removes moral scrutiny, and makes exceptional brutality appear rational, necessary, and even mundane. The shift from mowing to eradication after 7 October illustrates the danger Arendt warned

²⁵ Camilla Boisen, “Israel’s Punitive War on Palestinians in Gaza,” *Journal of Genocide Research*, 26 September 2024, at www.tandfonline.com/doi/full/10.1080/14623528.2024.2406098.

²⁶ Atalia Omer, “Turning Palestine into a *Terra Nullius*: On Amalek and ‘Miracles.’” *Journal of Genocide Research*, 1–22. Published online 22 May 2025, at <https://doi.org/10.1080/14623528.2025.2504737>.

²⁷ Nadim Rouhana, “Mowing the Lawn: Lethal Metaphors in Israeli National Security Culture Pre-7 October.” *Journal of Genocide Research*, published online 22 May 2025, at <https://doi.org/10.1080/14623528.2025.2506162>.

²⁸ Hannah Arendt, *Eichmann in Jerusalem: A Report on the Banality of Evil* (London, 2006).

about: when violence becomes normalized in the language of order, security, and “moral superiority,” it paves the way for genocidal escalation without ethical rupture.²⁹

This moralization of security permeates the genocide paradigm. In the 2015 article “The Concept of Genocide Reconsidered,” Mohammed Abed provocatively disputes the idea that genocide is necessarily immoral. In fact, committing genocide might just be a moral imperative in certain circumstances. Having decoupled genocide from its archetypical signifier as mass killing and challenging the conventional understanding of intent in genocide as that of necessarily hatred (that is to say that genocide is not necessarily an enormous hate crime), Abed goes on to argue that there can be a moral case for eliminating, meaning committing genocide (as social destruction) against white supremacists, whose views most find deplorable (“The right course of action was to strip them of an identity that gave meaning to their lives”).³⁰ Abed’s scholarly intervention is an example of how the genocide paradigm is flexed toward what I will term “permanent moral security.” Abed’s reconstitution of genocide as an obligation of the moral culling of group identities we find offensive at any given moment is another brand of orthodoxy that might be moral, but is probably never ethical. Conversely, Holocaust memorialization hinders our ability to transcend a historical comprehension of events, limiting us to a contemporary framework of moral and ethical perspectives that, while reflective of a specific historical context, ought not to dictate our current knowledge about that event. And herein lies the problem with the continued utilization of the genocide paradigm as a language for obligatory and motivational arguments: it draws on the past to define action in the present. This might be better than not seeking justification, but hardly enough. As an analytical tool, permanent security helps us see this kind of moralizing language that premises Holocaust memorialization because it exposes its geopolitical utilizations.

The crucial influence of the pursuit of permanent security in the politics of Holocaust memory in Israel and the West is a theme that James Renton’s article “Holocaust Memory and the Universal Sovereignty of the Liberal Democratic State”³¹ engages with as he shows how Holocaust memorialization has been a key tool to strengthening the twenty-first-century, post-9/11, “liberal democracy.” In this context, the moral gravity of the Holocaust serves as a brick in the infrastructure of “existentialism” of the Israeli state and also legitimizes the curbing of dissent, propagating mass censorship and a tough anti-Zionist state outlook. This broader posture also translates into tangible securitization policies like surveillance, policing, and counterextremism frameworks since 9/11, which are conveniently explained under the Holocaust and anti-Semitism paradigm. Renton connects this with the colonial genealogy of the “fanatic,” who must be preemptively neutralized. By taking this theoretical backing one step further, Renton charts how institutions like the International Holocaust Remembrance Alliance (IHRA) and the Organization for Security and Co-operation

²⁹Hannah Arendt, *The Origins of Totalitarianism* (Cleveland and New York, 1958), Chs. 12, 13.

³⁰Mohammed Abed, “The Concept of Genocide Reconsidered,” *Social Theory and Practice* 41/2 (2015), 328–56, at 347.

³¹James Renton, “Holocaust Memory and the Universal Sovereignty of the Liberal Democratic State,” *Journal of Genocide Research*, published online 13 June 2025, at <https://doi.org/10.1080/14623528.2025.2517848>.

in Europe (OSCE) are architectures of a global governance that surveils memory. This global memorial order is not primarily about the “never-again” motif as an ethical injunction, then, but about *never again* as a monitoring protocol that illustrates Moses’s vision of permanent security as “preemptive peacekeeping.”

And therein lies the contradiction between the norm against military intervention and the imperative to prevent genocide and other human-rights atrocities. This contradiction, Moses and others have argued, has led to the emergence of a new form of territorial expansion justified by claims of preventing atrocity crimes such as genocide. We see this kind of “geopolitical entrepreneurship” most recently and egregiously in Israel/Palestine. It also surfaces in Rwanda, where the memorialization of their population surviving the 1994 genocide is used as a basis for justifying their extraterritorial adventures and territorial expansion in the Great Lakes region.³² “Protection emergencies” (to use Benton’s terminology) of this kind represent civilized violence done in the name of peace and humanity, and are thus instantiated by the liberal permanent security modality.

They Called It Peace

A. C. Grayling notes that “bringing about peace often has genocidal elements to it.”³³ Peace as a moral proposition necessarily authorized war and conversion, whether against non-Christians or against so-called illiberal rogue states. Through complex legal and political discourses, peace sanitizes warring parties of their violence and furnishes them with alternative justifications. There is an ontological partnership of peace and security at play here. The history of applied peace is therefore a history of mass civilian destruction. It is a language of transgression because, as Murad Idris argues, it is constructed as an identity marker: *we* are peaceful; *they* are violent.³⁴ Thus peace becomes a test of humanity, and those who fail are rendered “enemies of peace.”³⁵ Permanent-security regimes, which rely on categories like the terrorist, the insurgent, or the rogue actor, are figures that exist outside the moral economy of peace and can therefore be targeted endlessly. Idris shows how peace, in its idealized form, demands that marginalized or colonized peoples perform. Peacefulness is to be recognized as human. But this is always a losing game, since peace is defined in terms that exclude.

In the age-old argument that wars are so abhorrent that they require moral constraint and judgment inherent in the Western just-war theory (JWT), peace features with some prominence in most of its Christian commentators. St Augustine famously positioned peace as the moral justificatory grounding for war. War should be waged for

³²Nils Gilman, Zachariah Mampilly, and A. Dirk Moses, “The New Politics of Territorial Expansion: ‘Never Again’ and the ‘Responsibility to Protect’ Now License Forcible Territorial Annexation,” *Noema Magazine*, 29 May 2025.

³³A. C. Grayling, *Among the Dead Cities: The History and Moral Legacy of the WWII Bombing of Civilians in Germany and Japan* (London, 2006), 138.

³⁴Murad Idris, *War for Peace: Genealogies of a Violent Ideal in Western and Islamic Thought* (New York, 2019), 10–14.

³⁵*Ibid.*, 31–2.

the sake of peace.³⁶ There is much to say about the Western JWT. More than these pages will allow. The Western JWT provides judgments on war premised on the assumption that it can be justified while also establishing ethical limits on how it can be conducted.³⁷ Viewed historically, JWT is also a language of transgression, and peace sits as one of its justificatory driving forces. It is striking that one of JWT's most noticeable commentators, Michael Walzer, who sought to reclaim the paradigm of JWT from the dusty halls of the academy to utilize it for antiwar advocacy during the Vietnam War in the late 1960s,³⁸ continues to give Israel a long leash when it comes to the war in Palestine.³⁹

Idris shows how, across centuries, political theorists from both "Western" and Islamic traditions have framed war as a precondition of restoring, protecting, or even defining peace. As he says, "Peace operates parasitically, provincially, and polemically."⁴⁰ How these traditions play out in global discourse is particularly telling. For instance, he shows how "jihad" has been turned into a shorthand for irrational, religious violence and becomes an intellectual alibi for Western thinkers like Walzer to invoke, to set up a contrast with "just war," which gets cast as rational, rule-bound, and humane. The connotation that the term "jihad" has come to occupy within the conscience of the West almost invites the justification that terms like "jihad" try to posit. Going a step further, Idris claims that it is a framing that not only justifies military interventions, but also helps produce the moral hierarchy that makes those interventions feel necessary. A reviewer of *War for Peace* put it quite sharply: "Westerners wage war in order to create peace while Muslims resort to their military jihad to inflict senseless violence and chaos."⁴¹ This ruthless binary is dangerous and flawed, with a range of implications for global equilibrium. It is what allows brutal invasions to be called liberation efforts, and resistance to be written off as fanaticism. Thus Idris rejects the core assumption of liberal internationalism that war is an unfortunate rupture in a stable peace, and that political action should always aim to restore peace. Peace, instead, has been historically idealized in ways that have justified endless war, particularly wars of expansion or pacification.

Peace as a concept functions as moral gatekeeping,⁴² and is tied to a set of elements of an assumed universal and idealized moral character which is used both as a motivational concept and as an obligatory concept. Non-European peoples were, of course,

³⁶See Andrej Zwitter and Michael Hoelzl, "Augustine on War and Peace," *Peace Review* 26/3 (2014), 317–24.

³⁷In the classical just-war theory, the principles of proportionality and necessity are applied twice: first in the criteria for deciding to go to war (*jus ad bellum*), and second in the rules for how war is conducted (*jus in bello*). This means that the theory demands that both the war as a whole and each specific action within it must be proportionate and necessary. See Jeff McMahan, "Proportionality and Necessity in *Jus in Bello*," in Seth Lazar and Helen Frowe, eds., *The Oxford Handbook of Ethics of War* (Oxford, 2015), 418–39.

³⁸Michael Walzer, "The Triumph of Just War Theory (and the Dangers of Success)," in Walzer, *Arguing about War* (New Haven, 2004), 3–22.

³⁹See Boisen, "Israel's Punitive War on Palestinians in Gaza."

⁴⁰Idris, *War for Peace*, 26.

⁴¹Asma Afsaruddin, "Murad Idris: *War for Peace: Genealogies of a Violent Ideal in Western and Islamic Thought*," (Oxford: Oxford University Press, 2019. Pp. xx, 329)," *Review of Politics* 82/2 (2020), 353–5.

⁴²See Idris, *War for Peace*, Ch. 6.

usually the “beneficiaries” of such European universal obligations. When John Locke, a founding father of liberalism, required non-Europeans to participate in the universal moral community of Christianity, this was not ethical dissonance on his part, but a strategic defense of a European right to colonial expansion based on a universal duty (to God) to flourish and self-preserve.⁴³ In fact, as Benton so aptly shows, imperial violence was frequently deployed for moral goals such as defense, protection, natural order, and peace, as neo-global violence is today. The very nature of colonial warfare was motivated to secure and protect the Western civilizing endeavor in “extra-European” territories, which were often brutal, and, as Benton remarks, “frontier violence in which settler land grabs resolved into colonial state making” precipitated long periods of chronic war (2). These “small wars” and “armed peace” on the colonial periphery were “violence at the threshold of war and peace.” This term describes the legal and political space for violence that exists between the traditional definitions of war and peace. Her concept reflects the historical context of imperial violence, where various forms of violence occurred in an intermediate space that was not clearly defined either as war or as peace. Thus the term captures the ambiguities and complexities of the legal and political frameworks that govern violence in imperial contexts.

One space of violence that historically, so to speak, has gone under the radar is one that fused “private violence and public authority” in “the reorganization of imperial space to defend communities of households” (94–5). The relation of private war to public war was one that occupied most of the early modern jurists. Grotius famously pursued the logic of legitimate private violence to punish violators of natural law in his *Mare Liberum* (95) and further flexed various “circumstances where violence might acquire the character of legitimate war by approximating the conditions of a solemn war” (96), meaning perfect wars that are “lawful.”⁴⁴ Grotius reconstituted “special definitions of political communities” by, for instance, marking off territory by building fortifications as ways to “construct a right to wage war.” Benton records for us how the colonial frontier of these makeshift fortified spaces was defended through “limited wars” and “worked to justify the violence of conquest and colonization” (96). Their very existences were reasons for defensive wars (97). By the eighteenth century, a global regime of armed peace, as Benton calls it, had emerged that emphasized enforcement of peace through the threat or use of violence, indicative of a condition of international relations where armed conflict and peace maintenance were interconnected. As Benton states, “Europeans were engaged in a race to militarize sprawling empires ... Patrolling armies and navies carried permanent authorization to engage in small wars, as long as they stayed small.” However, commanders and captains had discretion in determining what “small” meant; that is, they decided how much force to use, and in doing so, they gave new meaning to the category “measures short of war.” In this way,

⁴³See David Boucher, *The Limits of Ethics in International Relations: Natural Law, Natural Rights and Human Rights in Transition* (Oxford, 2009), Ch. 4; Camilla Boisen, “The Changing Moral Justification of Empire: From the Right to Colonise to the Obligation to Civilise,” *History of European Ideas* 39/3 (2013), 333–53.

⁴⁴See Camilla Boisen, “Hugo Grotius, Declaration of War, and the International Moral Order,” *Grotiana* 41 (2020), 282–303.

“many or most imperial interventions were described as responses to ... ‘protection emergencies’—crises of real or imagined danger to imperial subjects” (100–1).

Benton is sharp in taking aim at the narrative that presents legal milestones, like the Lieber Code of 1863, the Hague Conventions, or the Geneva Conventions, as turning points in a progressive moral arc. Instead, she invites us to see something far more unsettling: the continuity of legal ambiguity and imperial violence that has long defined global politics. What Benton offers instead is not a story of improvement but a genealogy of how violence has always been justified through law. Today’s justifications, like Russia calling its invasion of Ukraine a “special military operation,” are not new, but part of an old playbook. The language of permanent security is present when she suggests that the history of peace is less about keeping peace and more about managing war in ways that make it seem tolerable, even necessary, with progressively ingenious use of literary ambiguities that suit contemporary realities. This approach turns war into an administrative problem, something to be monitored and contained rather than condemned or ended.

We see the continuation today of one figure of speech in the war grammar book of “limited war,” small interventions, brief truces, and punitive raids, framed as ways to prevent greater violence. The US’s recent attack on Iranian nuclear infrastructure, where the trade-off of Iranian sovereignty was written off as fair play under the Western utilitarian imagination. Yet, time and again, these acts of “limited” violence spiraled into atrocities. Still, they retained their association with peacekeeping, allowing imperial powers to claim the moral high ground even as they committed massacres, exiled entire populations, and dismantled local sovereignties. The killing and forced removal of Aboriginal Tasmanians in the nineteenth century, for example, was another instance described not as genocide, but as a tragic necessity for restoring order (see e.g. Chapter 5).

Central to Benton’s argument is the idea that imperial violence thrived on legal vagueness. Categories like “rebel” and “enemy” were intentionally blurred, because keeping them unstable made it easier to justify violence (see Chapter 4). One day, someone might be a vassal; the next, a traitor. Either way, punishment could be swift and brutal, and legally defensible. Similarly, the distinction between state and non-state combatants and the extent to which they deserve “prisoner-of-war” protections under the Geneva Convention also became a preventive manner through which this vagueness was capitalized for the state’s advantage. This ambiguity further extended to the structure of the empire itself. Benton reminds us that empires were rarely neat hierarchies. They were patchworks of micro-polities, provisional alliances, and loosely governed spaces. In such fluid settings, imperial agents sometimes invented the law out of thin air, tailoring justifications to fit the moment. The “local right to war” was claimed through a combination of legal theatre and brute force, as outposts, like the example of imperial households provided above, that were reimagined as both autonomous communities and extensions of imperial authority, depending on what was politically convenient.

Like Moses, Benton’s analytical sharpness is particularly clear in how she connects these imperial practices to the modern world. The notion that Europe, and later the West more broadly, had the right to define what counted as lawful war, and who had the authority to wage it, didn’t disappear with decolonization. It simply evolved. The

legal theories of renowned jurists, such as Alberico Gentili (1552–1608), Hugo Grotius (1588–1645), and Emer de Vattel (1714–67), who had redefined European colonial conquests as “projects of peacemaking,” were later enshrined in the Western history of international law. These just-war theories permeated all forms of imperial violence, exactly because justifications for imperial violence frequently invoked the notions of peace and order. Today’s global security regime still carries the traces of this imperial logic: endless military operations justified as humanitarian interventions, the normalization of preemptive strikes, punitive wars, and a world where legal frameworks are bent to suit the interests of powerful states. Peace, in this world, is never truly reached. Instead, it is deferred, managed, and repackaged through legal language. It becomes a state of surveillance, intervention, and strategic violence that Benton calls a “hyper-violent peace” (192). This is not the opposite of war, but a mode of maintaining it in tolerable doses. Benton’s conclusion leaves us with a sobering thought: perhaps the line between law and violence, between peace and war, has always been thinner than we would like to believe. And perhaps, with Moses, we come to understand that what we call “security” today is less about protection than about preserving a world order where violence is not abolished but endlessly administered.

Peace is never a clean moral category, but then again, what is? Idris writes that peace is always “crafted as a weapon, with specific enemies in view, and honed against specific others.”⁴⁵ In terms of permanent security, it shows that peace is not the endpoint of security politics, but the medium through which regimes of security are normalized and expanded.

Where do we go from here?

In *Frames of War*, Judith Butler challenges us to imagine peace as an ideal outside the logic of war, which is actually quite difficult, perhaps even unworkable, as Idris says.⁴⁶ The boundary between war and peace remains unstable, especially outside the West—that is, in places that were historically conditioned by Western imaginations of a peaceful, orderly, civilized world. For Achille Mbembe, “the colony is a site where peace is more likely to take on a face of ‘a war without end.’”⁴⁷

Given the troubled history of “peace,” can we ideate on an alternative? How do we resignify peace so that it is outside the very history that gave it power? Peace, as an idea, is an outlaw of history because of how it has been operationalized. So unless we are committed Kantians (which I am not), no moral term should be conceived as its own freestanding idealized thing. Ideal theory, Charles W. Mills tells us, is often “*ideological*, in the pejorative sense of a set of group ideas that reflect, and contribute to perpetuating, illicit group privilege.”⁴⁸ Who is the group that an ideal concept of peace has historically privileged? Europe and the West. It is really no accident, Mills says, “that

⁴⁵ Idris, *War for Peace*, 7.

⁴⁶ Ibid., 45. See also Judith Butler, *Frames of War: When Is Life Grievable?* (New York, 2009).

⁴⁷ Mbembe quoted in Idris, *War for Peace*, 36.

⁴⁸ Charles W. Mills, “‘Ideal Theory’ as Ideology,” *Hypatia* 20/3 (2005), 165–84, at 166, original emphasis.

historically subordinated groups have always been deeply skeptical of ideal theory, generally seeing its glittering ideals as remote and unhelpful.”⁴⁹ So perhaps the tasks for us might just be how to make peace less ideal, and certainly to deprovincialize it. History might just help us in this regard.

How do we turn to history to depart from antihumanistic enterprises of apartheid, colonialism, humanitarian wars, and current wars of genocide prevention that seek to “denazify” the “enemy other” in the name of humanity? We cannot just fight it on more historical grounds, like those that were given when that history made the seemingly illegitimate legitimate. The question is, then, how do we step outside that history? As a historian, I will contend that we can never step outside our histories because we are conditioned by them. The historian of concepts Reinhard Koselleck tells us that within a given context, our space of experience is constrained, and the limits of what we may expect—the transformation of what *is* into what *ought to be*—are limited.⁵⁰ Michael Oakeshott warns against such “oughts” that are “counterfeit myths” imposed on the world by utopian rationalists, serving only to undermine communal solidarity. Peace has proven to be one such counterfeit myth. So has genocide. Koselleck’s mentor, Carl Schmitt, pointed out, “The last remnants of solidarity and a feeling of belonging together will be destroyed in the pluralism of an unforeseeable number of myths.”⁵¹ For Koselleck, when the gap between experience and expectation becomes too wide, we are faced with utopian ideals, and the function of politics, perhaps revolutionary politics, is to reconcile the two. Can we close this gap? At the very least, such endeavors require extraordinary means, and someone like Fanon positioned violent means as a liberating, viable moral alternative to the ideal of European peace.⁵² The exclusionary gap we see in the paradigm of peace today—especially as we position it as an instance of the liberal permanent security modality—might not cause a revolution (and some counterrevolutionaries will think it shouldn’t), but, academically speaking, we should be called to the barricades and demand a more radical reassessment of the underlying idealizations of “peace,” and not merely retrench into further ideals or invocations of the moral worth of reconciliatory procedures and applications.

As humanists, we have to be historical and create counterhistories. This is exactly why Moses’s and Benton’s works are so important. In one sense, Lemkin’s “genocide” was one such counterhistory, although with Moses we come to understand that it has become something of a Frankenstein’s monster. Part of a broader discussion about peace and associated terms like “genocide prevention” has to start with accounting for its troubled history to counteract any normative vacuity. This is not to say that questions of application or discussion of grievance and values are not important for a peace process, but the question of philosophical and historical analyses and interrogation

⁴⁹Ibid., 170.

⁵⁰Reinhard Koselleck, *Futures Past: On the Semantics of Historical Time* (New York, 2004), 257.

⁵¹Quoted in David Boucher, “The Depoliticisation of Politics: Crisis and Critique in Oakeshott, Schmitt and Koselleck,” in Noel O’Sullivan, ed., *Oakeshott’s Place in Contemporary Western and Non-Western Thought* (Exeter, 2017), 142–63, at 146.

⁵²See Frantz Fanon, *The Wretched of the Earth*, trans. C. Farrington (New York, 1963), esp. Ch. 1.

is certainly of equal importance. Such interrogations will inevitably be uncomfortable because they might undo and expose the applicative processes of peace as being provincial, counteractive, or outright coercive in troubling ways.

But isn't carrying the burden of other people's transgressions a form of transgression and coercion? If the answer is yes, then at the very least, to morally justify this ask, we need to expose the history that operationalized the legitimization of these transgressions and coercions in the first place. What if that burden is borne insincerely and for morally questionable motives and utilizations, as evidenced by the Holocaust memorialization regime? We observe how history, especially a tragic one, is utilized to perpetuate ongoing genocidal action and generational suffering against a people who bear no responsibility for the initial atrocity. As the Israeli legal philosopher Chaim Gans writes, "it is not the Palestinians who have persecuted the Jews continuously throughout the second millennium in Europe ... Without their explicit consent to paying the price, how can imposing that price be justified?"⁵³ Fassin observes that this may be the definitive key to understanding the acquiescence of many Western nations to the annihilation of Palestine: "atonement by proxy for their participation in the genocide of the European Jews."⁵⁴

A discussion of an erroneous idea, flawed procedure, or cleavage between values is only part of a whole discussion about peace. Its completeness is in its defense, and an earnest one that approaches the concept itself as fallible. This is not to reject peace as a concept, even a motivating one, but rather the demand of us to be skeptical and critical of what we call peace, what we are morally outraged by, what shocks our moral consciousness (especially if we proclaim it to be shared), what moral outrage we seek to memorialize, and what it calls us in return to do or not do. Such critique is necessary to any discussion of a practice, act, or idea, especially one propounding to be an obligation of seeking peace.

Conclusion

Moses and Benton compel us to reframe our understanding of violence, including peace and atrocity recognition, acknowledging how these ideas have been manipulated within military logic and security paradigms. Benton's examination of "violence at the threshold of war and peace" and Moses's dissection of genocide both reorient the stories we tell ourselves about violence and how many civilian deaths we are willing to tolerate, ultimately challenging our imaginings about the nature of brutality and its relationship with law and morality. But surely, some might contend, a flawed moral vocabulary is preferable to having none at all. Maybe not when it is so destructive for so many people. Exposing that it is flawed allows us to create new options and moral imaginations. It gives academic permission for that pursuit and further legitimizes the

⁵³ Quoted in Fassin, *Moral Abdication*, 85.

⁵⁴ Ibid. As I finalize this article, the Gaza peace plan has been agreed. But as one op-ed contends, "A plan that denies one side meaningful agency cannot yield legitimate peace. The ceasefire and aid trucks are to be welcomed. But this is not yet political progress. Without mechanisms guaranteeing Palestinian participation and control over their own institutions, any deal risks freezing subjugation under the language of peace." *The Guardian*, 13 Oct. 2025.

need for criticism. The alternative might be not to use a concept like peace or genocide as a crutch for not engaging in a hard theoretical exercise that begs for applicative value. It is hard work, yes, but necessary work, as Benton and Moses have shown.

A lingering question for the political theorist normatively engaging the pages of their books might be, how do we practice a morally responsible world order? How can we reconcile the persistent contradiction between moral outrage arising from mass civilian harm and the need to confront those injustices? And further, what are our obligations to this end? These were always going to be big Sisyphean questions. At some profound level, Lemkin, in coining the concept “genocide,” grappled with these questions. Dirk Moses, contrarily, urges us to consider the problems of the answers given to those questions—answers that continue to distort our thinking about a just world order and human suffering.

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